

16. *Espinosa v. FCA US, LLC, et al*, Case No. CIVSB2436711
Defendant FCA's Motion for Judgment on the Pleadings
6/2/26, 9:00 a.m., Dept. S-17

CONTINUE the matter to allow movant to satisfy the meet-and-confer requirements.

Prior to a motion for judgment on the pleadings, a party is required meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is the subject of the motion . . . for the purpose of determining whether an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings." (Code Civ. Proc., § 439(a) [emphasis added].) Merely sending a letter informing the party that a motion is forthcoming is insufficient.

Here, the supporting declaration indicates only that a letter was sent with no response. (See Borrero Decl., ¶¶3-4.) Thus, the Court would continue the matter to allow a supplemental declaration showing compliance. Movant will file a supplemental declaration at least ten court days before the next hearing with a courtesy copy lodged directly in the department.

17. *A.P. v. County of Santa Cruz, et al*, Case No. CIVSB2129877
Defendant County's Motion for Leave to Take the Subsequent Deposition of Plaintiff
6/2/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Case Summary

This is a sexual abuse case. Plaintiff A.P. alleges that she was sexually abused while in foster care roughly twenty years ago. She asserts that Defendant County of San Bernardino is liable because of its negligence and violation of its mandatory duties, specifically as it relates to the County's duties to monitor and protect. As such, Plaintiff filed suit against Defendant County of Santa Cruz, Defendant Hand in Hand Foundation, Defendant County of San Bernardino, and Defendant A Positive Attitude Outlook, on October 7, 2021. As to County of San Bernardino, Plaintiff alleges negligence. (Compl., ¶¶143-155.) Importantly here, Plaintiff filed a First Amended Complaint (FAC) recently on December 29, 2025. The FAC alleges (1) negligence (as to County); (2) negligence (as to A Positive Attitude); and (3) negligence (as to Does 5 through 25). Plaintiff alleges that she was sexually assaulted repeatedly in foster care while in custody. She further alleges physical, psychological, and emotional injuries suffered because of that alleged sexual conduct.

Now Defendant County seeks leave to take an additional deposition of Plaintiff to address new allegations.

Statement of the Law

Generally, once a party has taken the deposition of any natural person, neither the party who gave notice of the deposition – nor any other party who was served with the deposition notice – may take an additional, subsequent deposition. (Code Civ. Proc., § 2025.610(a).)

Nevertheless, for good cause shown, the court may grant leave to take a subsequent deposition. (Code Civ. Proc., § 2025.610(b).) “Good cause” exists if the inquiry is into matters relating to new factual issues that were not known at the time of the initial deposition. (*Carlson v. Superior Court* (1961) 56 Cal.2d 431, 439.) “Good cause” requires the movant to demonstrate specific facts justifying the discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. (*Vinson v. Superior Court* (1987) 43 Ca1.3d 833, 840.)

Analysis

The County originally took Plaintiff’s deposition on December 7, 2023. (Jack Decl., ¶13; Serrano Decl., ¶13.) The County now moves for leave to take a limited subsequent deposition on three main grounds: First, it argues that the FAC establishes good cause because it expressly added a direct liability theory against the County under Government Code section 815.6 for alleged breach of mandatory duties. Second, it argues that the later production of Riverside County’s Investigation Documents warrants a follow-up examination. Third, it argues that it recently became aware of a similar case filed by Plaintiff against Santa Cruz County and, though it does not seek discovery into that separate action, the County seeks limited testimony regarding how the post-deposition evolution of Plaintiff’s claims, pleadings, and document production affect the claims asserted here.

The FAC: The County stats that a limited subsequent deposition of Plaintiff is necessary to explore the factual basis for her newly pleaded direct liability theory. It asserts that the County should not be required to defend a newly pleaded liability theory without the opportunity to ask Plaintiff what factual basis supports that theory; what has changed since her prior deposition and responses; and how the new allegations are connected to the documents and information produced after the original deposition. In opposition, Plaintiff asserts that she did not allege any *different* facts in her FAC. (Serrano Decl., ¶¶8-9, Exhs. B-C.) “Rather, she amended how those facts are framed as a matter of law. Specifically, Plaintiff’s FAC added an express Government Code § 815.6 direct liability theory, but it did not change the underlying factual allegations.” (*Id.*, ¶19.) However, as the County acknowledges, when the Court granted leave to amend, it indicated “that the original Complaint was sufficient to put the County on notice of the general nature of the direct liability theory[.]” (Mot. at p. 4:27-28.)

Moreover, Plaintiff is correct that Defendant does not demonstrate diligence in seeking a subsequent deposition when the motion for leave was filed October 16, 2025, and the FAC was

officially filed on December 29, 2025. By contrast, this motion was not filed until almost 5 months later on May 18, 2026, and, importantly, it was filed about a month away from the scheduled trial date. (See *McCoy v. Gustafson* (2009) 180 Cal.App.4th 56, 98 [Concluding there was no abuse of discretion in the trial court denying the request for a subsequent deposition when no demonstration of diligence was shown by plaintiff warranting a reopening of discovery for her expert to develop a new opinion on the eve of trial].)

The Riverside County Documents: Next, the County argues that good cause exists since relevant documents relating to Riverside County's investigation into the incident were not received until well after Plaintiff's December 2023 deposition. The County did not receive redacted versions of those documents until April 3, 2025, and it did not receive unredacted versions containing further relevant information until November 12, 2025. (Jack Decl., ¶¶3-4.)

In her opposition, Plaintiff is correct that discovery routinely involves rolling productions, third-party productions, and supplemental disclosures. Plaintiff then argues that a party cannot extend the deposition process indefinitely by pointing to each new production as a trigger for additional examination. Plaintiff further highlights that her personal knowledge, recollection, and experience are not dependent on what documents Riverside County eventually produced. Plaintiff states that she knows what she reported to whom and when, and she already testified about that knowledge. (Serrano Decl., ¶¶4-7.) Plaintiff further states the Riverside County investigation documents may corroborate or supplement the documentary record, but they do not change what Plaintiff experienced and testified about. And, Plaintiff states that Defendant can cross-examine her at trial about any relevant documents. Thus, there does not appear to be good cause relating to these documents.

The Santa Cruz County Action: Finally, the County notes that Santa Cruz County was originally a defendant in this matter and was subsequently dismissed. It also notes that the FAC alleges that Plaintiff's juvenile case was transferred from Santa Cruz County to San Bernardino County for continued foster care supervision. It states that allegation places at issue the inter-county transfer, the timing and circumstances of the transfer, information communicated during the transfer, and the County's alleged notice and conduct.

Defendant County's counsel declares that on May 7, 2026, it became aware of a similar case filed by Plaintiff against Santa Cruz County when counsel for Santa Cruz County requested a copy of the first transcript of Plaintiff's deposition in this San Bernardino County matter. (Jack Decl., ¶6.) It expresses that it is not seeking discovery into the separate action merely because it exists, nor is it attempting to conduct duplicative discovery across multiple cases. Rather, Defendant argues the Santa Cruz County action is relevant because it reflects the broader post-deposition evolution of Plaintiff's litigation strategy and allegations, including dismissal, refiling, amendment of the complaint in this action, and production of additional documents after the original deposition. It contends that a limited subsequent deposition is necessary to understand how that evolution affects the claims asserted against the County in this action. In addition, the County contends that any claims involving sexual abuse which occurred when Plaintiff was a

minor and that predate this matter would materially impact any assessment of damages in this case. The County further contends refusal would be particularly prejudicial because Plaintiff denied that she ever made sexual assault allegations against any other foster parents, caregivers, or placements throughout discovery. Specifically, Plaintiff denied such in Request for Admission No. 23.

Plaintiff, in the opposition, shares that she filed the Santa Cruz County action on July 21, 2022, nearly four years ago. (Serrano Decl., ¶14.) She states that it is public record. Plaintiff then argues that Defendant could have raised questions concerning any related actions, including the Santa Cruz County action, at her initial deposition. Plaintiff also states the issues mentioned by the County were at issue already, or could have been, explored in the original deposition. Plaintiff further states that the question of what portion of Plaintiff's harm is attributable to Defendant versus other parties is a matter for expert testimony and trial. It does not require that Plaintiff be deposed a second time about the same underlying factual events she already described under oath. As to the suggestion that it should be permitted to examine Plaintiff about the Request for Admission No. 23 issue – relating to whether Plaintiff made sexual abuse allegations against multiple foster parents – Plaintiff argues it is a transparent attempt to use the motion process to rehash discovery it already received. She represents the admission is proper and asserts that Defendant's disagreement with her response is not a basis for a second deposition.

Here, although Defendant represents the discovery is rather recent, the other action itself presents no indication that there are any new factual issues. The Complaint originally alleged that Santa Cruz County placed Plaintiff in a foster care group home where a male juvenile resident repeatedly sexually assaulted and abused her at the age of 11 years old. (See Compl., ¶¶22-27.) It also originally alleged that Plaintiff reported the abuse to her case worker for Santa Cruz County and nothing was done. (*Id.*, ¶¶28-29.) It was also originally alleged and the FAC continues to allege that Plaintiff continued as a ward of the court in foster care. Upon information and belief, Plaintiff's juvenile case was transferred from the jurisdiction of Santa Cruz County to the County on or about 2002. She was placed under the custody, control, and care of the County for continued foster care supervision and was placed in the Faraq Foster Home where her foster father allegedly sexually assaulted and abused Plaintiff. (*Id.*, ¶¶41, 45-& 46; FAC, ¶¶ 20, 24-25, & 30.) Finally, it originally alleged and continues to allege that after she reported the abuse to the County, nothing was done.

Defendant County's argument then that the discovery of the Santa Cruz County action warrants another deposition is unpersuasive. It was on notice and could have asked during Plaintiff's deposition about the factual basis for the inter-county transfer allegations; the allocation of alleged responsibility between the counties; the chronology of alleged events; the basis for any claimed notice to the County; and whether the claimed injuries and damages are attributable to conduct by others. Again, the Court does not see good cause.
